



SCHOOL OF COMPUTING AND ENGINEERING SCIENCES
BACHELOR OF SCIENCE IN INFORMATICS AND COMPUTER SCIENCE
ICS 4204: COMPUTING & BUSINESS LAW
END OF SEMESTER EXAM

Date: 5th December 2023

Time: 10:30-12:30

Instructions:

1. This Examination consists of **FIVE** questions
2. Answer **Question ONE (COMPULSORY)** and any other **TWO** questions.

Question One

- a) A Bioprospector, Dr. Jacob PhD, from Israel intends to come to Kenya and in particular, to Taita Taveta. Once in Taita Taveta, Dr. Jacob, a crooked scientist, learns that there are several authentic herbalists with medicines which cure rare ailments and have been used by the locals for hundreds of years. He goes to them and without the permission of the community and the County of Taita Taveta, smuggles out genetic substances and manages to reach Jerusalem where he ultimately patents all the active compounds. Mr Charo, a local resident learns about this and comes for your advice. Advise him on the issues around communal ownership *vis a vis* Traditional Knowledge (TK) protection. **(10 Marks)**
- b) Describe the place of World Intellectual Property Organisation (WIPO) in administering Trade Marks. **(10 Marks)**
- c) Mr Kariuki, a very prominent business man and scientist recently decided to develop a laboratory in Kenya intended for cloning human beings. Advise him on the patent exclusion laws in Kenya and in particular, those which govern patentability. **(10 Marks)**

(TOTAL 30 Marks)

Question Two

a) Briefly explain vitiating factors in the law of contract. **(10 Marks)**

b) Define Contract and explain the place for written contracts. **(5 Marks)**

(TOTAL 15 Marks)

Question Three

a. Briefly explain the threshold for granting of a trade mark and the steps in filing an application for registration of trade mark. **(10 Marks)**

b. Explain the key role of the data protection officer. **(5 Marks)**

Certain data controllers must appoint a data protection officer whose main responsibility is to oversee data protection compliance.

(TOTAL 15 Marks)

Question Four

a) Briefly explain the various rights that both agent and principal have against each other. **(10 Marks)**

b) Briefly explain *injuria sine damno* and *damnum sine injuria*. **(5 Marks)**

(TOTAL 15 Marks)

Question Five

a) Explain in detail constitution and precedents as sources of law that are recognised by progressive democracies. **(10 Marks)**

b) Explain briefly the doctrines of separation of powers according to Montesquieu.

(5 Marks)

(TOTAL 15 Marks)